



CHAPTER cxl.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to Fulwood Scar-
borough Sowerby Bridge and Stockton-on-Tees.

[18th August 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto Orders in
shall be and the same are hereby confirmed and all the provisions schedule
thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 1) Act 1911.

A.D. 1911.

S C H E D U L E.

URBAN DISTRICT OF FULWOOD.

*Fulwood
Order.*

*Provisional Order for altering the Fulwood and Whittingham
Water Act 1882 the Fulwood Local Board Act 1885
and the Fulwood Local Board (Water) Act 1894.*

To the Urban District Council of Fulwood;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Fulwood (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Fulwood (herein-after referred to as "the District");

45 Vict. c. xi.
48 & 49 Vict.
c. xxxv.
57 & 58 Vict.
c. lviii.

And whereas the unrepealed provisions of the Fulwood and Whittingham Water Act 1882 (herein-after referred to as "the Act of 1882") the Fulwood Local Board Act 1885 (herein-after referred to as "the Act of 1885") and the Fulwood Local Board (Water) Act 1894 (all of which Acts are herein-after collectively referred to as "the Local Acts") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order are in force in the District;

And whereas the Council or their predecessors were authorised by the Local Acts to construct waterworks and to supply water for public and private purposes within the limits defined by Section 14 of the Act of 1882 as extended by Section 6 of the Act of 1885 which limits are herein-after referred to as "the water limits of the Council";

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say:—

Application
of sections
of Public
Health Act

Art. I. For the purpose of supplying water within the water limits of the Council the Council shall within those limits have the powers of a local authority under Section 54 of the Public Health Act 1875

in respect of the carrying of water mains within their district and in exercising the powers of that section any area within the water limits of the Council shall be deemed to be included in the district of the Council:

A.D. 1911.
Fulwood
Order.
 1875 to water
 undertaking.

Provided that in the exercise of the said powers the Council shall be subject to the provisions of Sections 308 327 328 329 and 332 of the Public Health Act 1875:

Provided also that nothing in this Article shall authorise the Council to carry any water mains into through or under any lands of the London and North Western Railway Company and the Lancashire and Yorkshire Railway Company or either of them without the consent in writing of those companies which consent shall not be unreasonably withheld. If any difference arises as to whether any such consent is unreasonably withheld that difference shall be referred to an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

Art. II. This Order may be cited as the Fulwood Order 1911. Short title.

Given under the Seal of Office of the Local Government Board
 this Third day of March One thousand nine hundred and
 eleven.

(L.S.)

JOHN BURNS President.
 H. C. MONRO Secretary.

BOROUGH OF SCARBOROUGH.

Provisional Order for partially repealing and altering the *Scarborough*
Scarborough Valley Bridge Company's Act 1864. *Order.*

To the Mayor Aldermen and Burgesses of the Borough of
 Scarborough; —

And to all others whom it may concern.

WHEREAS the Borough of Scarborough (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Scarborough Valley Bridge Company's Act 1864 as altered by the Scarborough Improvement Act 1889 and the Scarborough Corporation Act 1900 (each of which Acts is herein-after referred to as the Act of the year wherein it was passed) are in force in the Borough;

27 & 28 Vict.
 c. lxxviii.
 52 & 53 Vict.
 c. clxiv.
 63 & 64 Vict.
 c. cclxxix.

[Ch. cxl.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911.

*Scarborough
Order.*

And whereas the Corporation in pursuance of the provisions of Section 65 of the Act of 1864 have acquired a bridge (herein-after referred to as "the Bridge") over the Ramsdale Valley in the Borough and the Corporation are under the provisions of that Act empowered to carry on and maintain the same and from time to time to execute the necessary works in connection therewith to take tolls thereat to levy an improvement rate for the purpose of carrying into execution the powers vested in them by the said Act and to borrow money for that purpose on the credit of the said rate and of the said tolls;

And whereas by Section 92 of the Act of 1864 it was provided that when the whole of the principal money borrowed by the Corporation under the authority of that Act and all interest payable in respect thereof should have been paid off and discharged then the tolls authorised to be taken for the use of the Bridge should cease and determine and the Bridge should thereupon become a free bridge;

And whereas by Section 198 of the Act of 1889 a period of thirty years from the date of borrowing is prescribed for the repayment of moneys borrowed under the Act of 1864 which period will expire on the Thirty-first day of March One thousand nine hundred and twenty-one;

And whereas by Section 23 of the Act of 1900 the Corporation are empowered to take in addition to the tolls authorised to be taken by the Act of 1864 the tolls specified in that Section (all which tolls are herein-after referred to as "the Bridge Tolls");

And whereas by the Act of 1900 provision is made as to the repayment of principal moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power and not raised by the issue of Corporation Stock and by Section 76 of the Act of 1900 it is provided that the said principal moneys shall be repaid within the periods respectively prescribed by the statutory borrowing powers and in the Act of 1900 referred to as the prescribed periods;

And whereas the Corporation propose to carry out works for the strengthening of the Bridge and to borrow additional money for that purpose;

And whereas it is proposed that the power to levy an improvement rate for the purposes of the Bridge shall be repealed;

And whereas the Corporation have applied to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Act of 1864 as altered as aforesaid to the extent and in the manner herein-after set forth:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1864 as altered as aforesaid shall be partially repealed

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

and altered so that the following provisions shall take effect that is to say:—

A.D. 1911.

*Scarborough
Order.*

Art. I.—(1) In addition to the sums already authorised to be borrowed the Corporation may subject to the provisions of this Order borrow any sum or sums not exceeding eleven thousand pounds for the purposes of the Bridge.

Additional
borrowing
powers for
purposes of
Bridge.

(2) For the repayment of all moneys borrowed in pursuance of this Order and for the payment of interest thereon the Bridge Tolls and the district fund and general district rate of the Borough are hereby primarily made chargeable and the provisions of the Act of 1900 shall apply and have effect accordingly.

Security for
moneys bor-
rowed under
this Order.

(3) The moneys borrowed under this Order shall be repaid within the period of ten years from the Thirty-first day of March One thousand nine hundred and eleven and that period shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Act of 1900.

Period for
repayment
of borrowed
moneys.

Art. II. Sections 75 76 77 78 79 80 81 82 83 84 85 86 87 88 90 and 92 of the Act of 1864 shall be repealed except so far as the same may have been acted upon:

Repeal of
Local Act
provisions.

Provided that nothing in this Article shall prejudice or affect any mortgage or other security which has been granted in respect of any sums borrowed by the Corporation for any purpose of the Act of 1864 or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made but recourse shall be had to the general district rate of the Borough in any case in which but for this Order recourse would have been had to the improvement rate formerly leviable under the Act of 1864.

Art. III. All moneys from time to time received by the Corporation from the Bridge Tolls or from any rents payable in respect of the Bridge Tolls shall be applied and disposed of as follows:—

Application
of Bridge
Tolls.

First in paying the interest on the moneys borrowed by the Corporation for the purposes of the Bridge:

Secondly in paying the expenses of management in putting the several powers of the Act of 1864 into execution and of keeping the Bridge and the works connected therewith and the approaches thereto within one hundred and sixty yards from the north side thereof and within fifty yards from the south side thereof in proper repair and of lighting the same:

Thirdly any moneys remaining after the foregoing charges have been met shall be carried to the credit of the sinking fund established for paying off moneys borrowed by the Corporation for the purposes of the Bridge or applied towards the repayment of so much of the borrowed moneys as remains unpaid.

[Ch. cxl.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911. Art. IV. Any expenses incurred by the Corporation in maintaining
Scarborough and repairing the Bridge and otherwise in the execution of their powers
Order. under the Act of 1864 shall in so far as those expenses are not met
Expenses of out of the Bridge Tolls or rents payable in respect of the Bridge Tolls
Corporation in pursuance of Article III. of this Order be defrayed out of the
in maintain- district fund and general district rate of the Borough.
ing Bridge
&c.

Cessation of Art. V. When all the moneys borrowed by the Corporation for
Bridge Tolls the purposes of the Bridge and all interest payable in respect thereof
on discharge have been paid off and discharged the Bridge Tolls shall cease and
of debts. determine and the Bridge shall thereupon become a free bridge.

Short title. Art. VI. This Order may be cited as the Scarborough Order 1911.
 Given under the Seal of Office of the Local Government Board
 this Fifteenth day of February One thousand nine hundred
 and eleven.

(L.S.)

JOHN BURNS President.
 H. C. MONRO Secretary.

URBAN DISTRICT OF SOWERBY BRIDGE.

Sowerby *Provisional Order for altering the Sowerby Bridge Gas*
Bridge Order. *Act 1861 the Sowerby Bridge Local Board Act 1863 the Local*
Government Board's Provisional Orders Confirmation
(No. 8) Act 1884 and the Local Government
Board's Provisional Orders Confirmation (No. 6) Act 1894.

To the Urban District Council of Sowerby Bridge ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Sowerby Bridge (herein-after
 referred to as "the Council") are the local authority within the
 meaning of the Public Health Act 1875 for the Urban District of
 Sowerby Bridge (herein-after referred to as "the District");

And whereas there are in force in the District the unrepealed provi-
 sions of the Sowerby Bridge Gas Act 1861 and the Sowerby Bridge
 Local Board Act 1863 (each of which Acts is herein-after referred to as
 the Act of the year in which it was passed and which Acts are herein-after
 together referred to as "the Local Acts") as altered by a Provisional
 Order of the Local Government Board dated the Fifth day of June One
 thousand eight hundred and eighty-four which was confirmed by the
 Local Government Board's Provisional Orders Confirmation (No. 8) Act
 1884 and the Sowerby Bridge Order 1894 which was confirmed by
 the Local Government Board's Provisional Orders Confirmation (No. 6)
 Act 1894 (which Provisional Orders and Confirming Acts are herein-
 after referred to respectively as "the Orders" and "the Confirming

24 & 25 Vict.
 c. lxxx.
 26 Vict.
 c. lii.

47 & 48 Vict.
 c. ccxv.

57 Vict.
 c. xxiii.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

Acts") and by certain other Provisional Orders duly confirmed by A.D. 1911.
 Parliament which do not affect the subject-matter of this Order;

And whereas by the Act of 1861 the Sowerby Bridge Local Board *Sowerby
Bridge Order.*
 (herein-after referred to as "the Local Board") who were the predecessors
 of the Council were empowered to purchase the undertakings of the
 Sowerby Bridge Gas Company and the Sowerby Bridge Gas Consumers
 Company and to borrow money for the purchase and for gasworks
 purposes;

And whereas by the Act of 1863 and the Orders further borrowing
 powers for gasworks purposes were conferred upon the Local Board;

And whereas the Local Board or the Council have exercised the
 powers aforesaid and it is expedient that the Council be empowered to
 borrow further moneys for the purposes of their gas undertaking;

And whereas the Council have made application to the Local
 Government Board for the issue of a Provisional Order to alter or
 amend the Local Acts and the Confirming Acts in the manner herein-
 after set forth:

Now therefore We the Local Government Board in pursuance of
 the powers given to Us by Sections 297 and 303 of the Public Health 38 & 39 Vict.
 Act 1875 and by any other Statutes in that behalf do hereby order c. 55.
 that from and after the date of the Act of Parliament confirming this
 Order the Local Acts and the Confirming Acts so far as they respec-
 tively relate to the Orders shall be altered so that the following provisions
 shall take effect that is to say:--

Art. I. The Council may with the sanction of the Local Govern- Additional
 ment Board and subject to the provisions of this Order borrow upon borrowing
 the security of the revenue of their gas undertaking and of the district powers for
 fund and general district rate of the District or upon either of those gas under-
 securities such further moneys as may from time to time be required taking.
 for the purposes of their gas undertaking.

Art. II. For the purpose of raising money in the exercise of the Local Loans
 powers of borrowing conferred by this Order the provisions of the Act and cer-
 Local Loans Act 1875 shall be available to the Council and tain provi-
 Sections 236 to 238 of the Public Health Act 1875 shall apply to all sions of Pub-
 moneys borrowed on mortgage under this Order. lic Health
 Act made
 applicable.

Art. III. The moneys borrowed under Article I. of this Order Period for re-
 shall be repaid within such period not exceeding sixty years from the payment of
 date of borrowing as the Council with the sanction of the Local borrowed
 Government Board in each case determine and the period so determined moneys.
 and sanctioned is herein-after referred to as "the prescribed period"
 and shall with reference to the moneys to be repaid be the prescribed
 period for the purposes of this Order and of the Local Loans Act 1875.

Art. IV.—(1) The Council shall repay the moneys borrowed under Mode of
 this Order (other than moneys borrowed under the provisions of the repayment.

A.D. 1911. Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
maintenance
and applica-
tion of sink-
ing fund.

(2) Subject to the provisions of Article V. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council : A.D. 1911.
Sowerby
Bridge Order.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Art. V.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct. Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

[Ch. cxl.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911.

*Sowerby
 Bridge Order.
 Surplus of
 sinking fund.*

Power to
 re-borrow.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Art. VI.—(1) The Council shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
 of borrowed
 moneys.

Art. VII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Receiver.

Art. VIII.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver:

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him : A.D. 1911.
Sowerby
Bridge Order.

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court. Return as to
provision for
repayment of
debt.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be

[Ch. cxl.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911. paid or applied as is mentioned in the said order and any such order
Sowerby shall be enforceable by writ of mandamus to be obtained by the
Bridge Order. Board out of the High Court.

Inquiries and Art. X. Where the Local Government Board cause any local
expenses. inquiry to be held with reference to any of the purposes of this Order
the costs incurred by the Board in relation to that inquiry (including
such reasonable sum not exceeding three guineas a day as the Board
may determine for the services of any inspector or officer of the
Board engaged in the inquiry) shall be paid by the Council and the
Board may certify the amount of the costs so incurred and any sum
so certified and directed by the Board to be paid by the Council
shall be a debt due to the Crown from the Council.

Short titles. Art. XI. The said Provisional Order of the Local Government Board
dated the Fifth day of June One thousand eight hundred and eighty-
four may be cited as the Sowerby Bridge Order 1884 and this Order
may be cited as the Sowerby Bridge Order 1911 and the Orders and
this Order may together be cited as the Sowerby Bridge Orders 1884
to 1911.

Given under the Seal of Office of the Local Government Board
this Eighteenth day of February One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

BOROUGH OF STOCKTON-ON-TEES.

Stockton-on- *Provisional Order for altering the Stockton Gas Act 1857 the*
Tees Order. *Stockton Gas Act 1866 the Stockton Gas Act 1873 and*
 the Stockton-on-Tees Corporation (Gas) Act 1893.

To the Mayor Aldermen and Burgesses of the Borough of Stockton-
on-Tees; —

And to all others whom it may concern.

WHEREAS the Borough of Stockton-on-Tees (herein-after referred to
as "the Borough") is an Urban District of which the Mayor Aldermen
and Burgesses acting by the Council (herein-after referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed
provisions of the Stockton Gas Act 1857 (herein-after referred to as

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911.

Stockton-on-Tees Order.

"the Act of 1857") the Stockton Gas Act 1866 the Stockton Gas Act 1873 and the Stockton-on-Tees Corporation (Gas) Act 1893 (herein-after referred to as "the Act of 1893") (all which Acts are herein-after collectively referred to as "the Local Acts") as altered by a Provisional Order (herein-after referred to as "the Order") of the Local Government Board dated the Fourth day of March one thousand eight hundred and eighty-five which was confirmed by the Local Government Board's Provisional Orders Confirmation Act 1885;

20 & 21 Vict.
c. lii.
29 & 30 Vict.
c. cvi.
36 Vict.
c. lxxvii.
56 Vict.
c. xvi.
48 Vict. c. i.

And whereas the Corporation are empowered under the provisions of the Local Acts to manufacture gas and to supply gas within the limits defined by Section 3 of the Act of 1857 and Section 4 of the Act of 1893 and to borrow money for the purposes of the Local Acts;

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the purposes of their gas undertaking and the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts as altered by the Order shall be further altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I.—(1) The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their gas undertaking and of the borough fund and borough rate of the Borough or upon either of those securities such further sums not exceeding in the whole the sum of fifty thousand pounds as may from time to time be required for the purposes of their gas undertaking.

Additional
borrowing
powers.

(2) The provisions contained in Section 89 of the Act of 1857 shall apply to any borough rate or rate in the nature of a borough rate or any increase of any such rate made or levied for the purpose of raising any moneys required to defray the interest upon or to discharge the principal of any sums borrowed in the exercise of the powers of borrowing conferred by this Order.

Art. II. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans
Act and cer-
tain provisions
of Public
Health Act
made appli-
cable.

[Ch. cxi.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.

A.D. 1911.

Stockton-on-Tees Order.
 Period for
 repayment
 of borrowed
 moneys.

Art. III. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
 repayment.

Art. IV.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(2) Subject to the provisions of Article V. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

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Tees Order.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. V.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund

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Stockton-on-Tees Order.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Power to re-borrow.

Art. VI.—(1) The Corporation shall have power—

- (A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (No. 1) Act, 1911.

Art. VII. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

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Application of borrowed moneys.

Art. VIII.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Return as to provision for repayment of debt.

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(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Inquiries and
expenses.

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the gas undertaking of the Corporation the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short title.

Art. XI. The Order may be cited as the Stockton-on-Tees Order 1885 this Order may be cited as the Stockton-on-Tees Order 1911 and the Order and this Order may be cited together as the Stockton-on-Tees Orders 1885 and 1911.

Given under the Seal of Office of the Local Government Board
this Third day of March One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

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